Introduction to Algorithmic Fairness

Algorithmic discrimination occurs when automated decision-making tools are used in a way that illegally disadvantages individuals because of their protected characteristics.

Protected characteristics under the New Jersey Law Against Discrimination (LAD) include race, religion, color, national origin, nationality, sexual orientation, pregnancy, breastfeeding, sex, gender identity, gender expression, disability, and more.

Automated decision-making tools are technological tools that are used to automate all or part of the human decision-making process. They include both emerging technologies like artificial intelligence (AI) and familiar technologies like traditional statistical tools and decision trees.

The LAD prohibits algorithmic discrimination in the same way it prohibits other forms of discrimination in housing, employment, credit, contracting, and places of public accommodation—including schools, banks, police departments, medical facilities, and other places open to the public.

Not every use of automated decision-making tools leads to algorithmic discrimination. Whether these tools result in discrimination depends on their design, development, and application.

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Automated Decision-Making Tools in Housing, Work, Schools, and Health Care

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Housing Providers may use these tools to:

- screen tenants
- approve rentals
- approve mortgages
- set mortgage terms
- decide which houses to show people
- value homes
- advertise housing

Employers may use these tools to:

- make hiring and firing decisions
- review resumes
- assess interviews
- make promotion and demotion decisions
- monitor employees
- advertise jobs

Schools may use these tools to:

- monitor attendance
- tutor students
- grade assignments
- aid in disciplinary decisions
- monitor students' computer use
- filter and block content available to students
- predict students' likelihood of graduation

Health Care Providers may use these tools to:

- make diagnoses
- decide the type of care a patient receives
- prescribe medications
- allocate resources between patients
- determine patients' health risks

To learn more about automated decision-making tools and the LAD, see our guidance document.

NJ Division on Civil Rights | NJDCR4U@njcivilrights.gov | 1-833-653-2748